

23VECV02287 23VECV02287

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-09-10

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CO%2C09%2F10%2F2026

Source SHA-256: f03aef2b2944c3b7de35ede05cb0e6c0bd13c9104401a949ef47d88592e975f0

Case Number: 23VECV02287 Hearing Date: September 10, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

EVAN JEHL, Trustee of the 17100 Rancho Trust,

Plaintiff,

vs.

RANCHO VILLA, LLC, a California limited liability company; DAVID ZEMACH, an individual; CW GENERAL CONSTRUCTION, INC., a California corporation; HUDSON INSURANCE COMPANY, a division of Hudson Insurance Group, an unknown entity, headquartered in New York City; JR POOL & SPA SERVICES, INC., a California corporation; HARTFORD INSURANCE COMPANY OF THE MIDWEST, a subsidiary of The Hartford Financial Services Group, Inc., a Delaware corporation, located in Hartford, Connecticut; J.T. EDEN, a California corporation doing business under the fictitious name and style of THE EDEN GROUP, and DOES 1-100, inclusive,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 23VECV02287

ORDER SUSTAINING IN PART DEFENDANT MOSHE ZEMACH'S DEMURRER TO FOURTH AMENDED COMPLAINT
WITH LEAVE TO AMEND

RANCHO VILLA, LLC, a California limited liability company; DAVID ZEMACH, an individual,

Cross-Complainants,

vs.

CW GENERAL CONSTRUCTION, INC., a California corporation; JR POOL & SPA SERVICES, INC.; GORDON S. GIBSON,
INC., a California corporation; HENDRIX CONSULTING, LLC, a California limited liability company; ROES 1 through 50,
inclusive,

Cross-Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

RIEHL CONSTRUCTION CONSULTING, LLC,

Cross-Complainant,

vs.

EVAN JEHLE, Trustee of the 17100 Rancho Trust; NJJ Entertainment, LLC and MOES 1-20, Inclusive,

Cross-Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

J.T. Eden, a California corporation doing business under the fictitious name and style of THE EDEN GROUP,

Cross-Complainant,

VS.

SOES 1-25, inclusive,

Cross-Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

CW GENERAL CONSTRUCTION, INC., a California corporation,

Cross-Complainant,

VS.

RANCHO VILLA, LLC, a California limited liability company; DAVID ZEMACH, an individual, and DOES 1-200,

Cross-Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

))

YORAM DAVID NAJUM DBA JR POOL AND SPA SERVICES erroneously sued and served as JR POOL & SPA SERVICES, INC,

Cross-Complainant,

vs.

ROES 1-50, inclusive,

Cross-Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

I. BACKGROUND

This case arises out of the alleged construction defects of a residence located at 17100 Rancho Street, Encino, California ("Property"). (See Fourth Amended Complaint ("4AC"), ¶¶ 1-2.) Plaintiff Evan Jehle, Trustee of the 17100 Rancho Trust, alleges he purchased the Property from Defendant developer Rancho Villa, LLC ("Rancho Villa"), on October 25, 2019, but that the Property was "replete with latent defects." (See 4AC, ¶¶ 2, 27.) Plaintiff filed his 4AC against Rancho Villa and those involved in the construction of the Property: Defendant David Zemach ("David Z.") (managing member and owner of Rancho Villa), Defendant CW General Construction, Inc. ("CW") (general contractor responsible for allegedly defective decking), Defendant Yoram David Najum dba JR Pool and Spa Services ("JR Pool") (pool and spa contractor responsible for defective pool construction), Defendants Hudson Insurance Company ("Hudson Insurance") and Hartford Insurance Group ("Hartford Insurance") (CW and JR Pool's insurers, later dismissed), and Defendant J.T. Eden dba The Eden Group ("J.T. Eden") (architectural/engineering firm involved in the construction of the Property), IO Lifetime Builders, Inc., Oded Zemach, Urbino Construction Services, LLC ("Urbino"), and Moshe Zemach (Moshe Z.) (collectively, "Defendants"). (See generally 4AC.)

Several cross-complaints have been filed in this action. Rancho Villa and Zemach filed a Cross-Complaint against CW, Cross-Defendant Gordon S. Gibson, Inc. ("Gibson"), Cross-Defendant Jabs Pools and Spas, LLC ("Jabs Pools") and Riehl Construction Consulting, LLC ("Riehl").

For good measure, Riehl filed a Cross-Complaint of its own against Plaintiff and Cross-Defendant NJJ Entertainment, LLC ("NJJ").

Moshe Z. now demurs to the 4AC.

II. PROCEDURAL HISTORY

On May 24, 2023, Plaintiff filed his Complaint, alleging (1) Construction Defects – Violation of Civil Code § 896, et seq. (The Right to Repair Act) against Defendants Rancho Villa, Zemach, CW, Hudson Insurance, Hartford Insurance, and JR Pool; (2) Fraudulent Transfer (Civil Code § 3439.04) against Rancho Villa; and (3) Rescission (Civil Code § 1688, et seq.) against Rancho Villa.^[1]

On June 30, 2023, Plaintiff dismissed Hartford Insurance and Hudson Insurance.

On July 31, 2023, Plaintiff filed his FAC, alleging (1) Construction Defects – Violation of Civil Code § 896, et seq. (The Right to Repair Act) against all Defendants; (2) Fraudulent Transfer (Civil Code § 3439.04) against Rancho Villa; and (3) Rescission (Civil Code § 1688, et seq.) against Rancho Villa.

On August 30, 2023, Plaintiff filed a Certificate of Merit pursuant to Code of Civil Procedure § 411.35(b)(1) as to J.T. Eden.

On September 28, 2023, J.T. Eden filed its Cross-Complaint against SOES 1 through 25, inclusive, alleging (1) Equitable/Implied Indemnity; (2) Apportionment and Contribution; and (3) Declaratory Relief.

On September 29, 2023, Rancho Villa and Zemach filed their Cross-Complaint against CW, JR Pool, Gibson, and Cross-Defendant Hendrix Consulting, LLC, alleging (1) Equitable Indemnity; (2) Contribution; and (3) Declaratory Relief ("Rancho Villa Cross-Complaint").

On November 3, 2023, CW filed its Answer to Rancho Villa and Zemach's Cross-Complaint.

On November 3, 2023, CW filed its Cross-Complaint against Rancho Villa and Zemach, alleging (1) Equitable/Implied Indemnity; (2) Apportionment and Contribution; and (3) Declaratory Relief.

On November 7, 2023, Rancho Villa and Zemach dismissed their Cross-Complaint only as to JR Pool.

On November 7, 2023, Rancho Villa and Zemach amended their Cross-Complaint, adding Jabs Pools and Riehl.

On November 7, 2023, Rancho Villa and Zemach filed their Answer to CW's Cross-Complaint.

On December 20, 2023, JR Pool filed its Cross-Complaint against ROES 1-50, inclusive, alleging (1) Equitable Indemnity; (2) Partial Indemnity; (3) Contribution; and (4) Declaratory Relief.

On January 9, 2024, Gibson filed its Answer to Rancho Villa and Zemach's Cross-Complaint.

On January 12, 2024, Jabs Pools filed its Answer to Rancho Villa and Zemach's Cross-Complaint.

On January 16, 2024, Riehl filed its Answer to Rancho Villa and Zemach's Cross-Complaint.

On January 16, 2024, Riehl filed its Cross-Complaint against Plaintiff and NJJ, alleging (1) Equitable Indemnity, Apportionment, and Contribution; (2) Declaratory Relief; and (3) Breach of Written Contract-Express Indemnity.

On February 16, 2024, Rancho Villa and Zemach dismissed their Cross-Complaint only as to Defendant Hendrix Consulting, LLC.

On May 8, 2024, Plaintiff filed his Answer to Riehl's Cross-Complaint.

On August 6, 2024, J.T. Eden amended its Cross-Complaint, adding Cross-Defendant Fast Lane Concrete Pumping.

On September 13, 2024, this Court overruled NJJ's Demurrer to Riehl's Cross-Complaint.

On September 17, 2024, NJJ filed its Answer to Riehl's Cross-Complaint.

On October 21, 2024, Plaintiff filed a Second Amended Complaint ("SAC").

On December 27, 2024, JR Pool filed an Answer to Plaintiff's SAC.

On February 14, 2025, Plaintiff filed a TAC alleging: (1) Construction Defects - Violation of Civil Code § 896, et seq. (The Right to Repair Act); (2) Fraudulent Transfer (Civil Code § 3439.04); (3) Rescission (California Civil Code § 1688, et seq.); (4) Fraudulent Concealment (California Civil Code § 1710(3); and (5) Negligence Against Defendants Hendrix Consulting, LLC And Does 56-60.

On March 14, 2025, J.T. Eden filed an Answer to Plaintiff's TAC.

On April 1, 2025, CW filed an Answer to Plaintiff's TAC.

On April 23, 2025, Hendrix Consulting, LLC filed an Answer to Plaintiff's TAC.

On August 4, 2025, the Court dismissed Cross-Defendant Jabs Pools and Spas, LLC, from Rancho Villa, LLC and David Zemach's Cross-Complaint filed on September 29, 2023.

On August 15, 2025, the Court granted Plaintiff leave to file a 4AC.

On August 19, 2025, Plaintiff filed his 4AC alleging: (1) Construction Defects - Violation Of Civil Code § 896, et seq. (The Right To Repair Act); (2) Fraudulent Transfer (Civil Code § 3439.04); (3) Rescission (California Civil Code § 1688, et seq.); (4) Fraudulent Concealment (California Civil Code § 1710(3); and (5) Negligence Against Defendants Hendrix Consulting, LLC and DOES 56-60. Plaintiff added Oded Zemach, IO Lifetime Builders, Inc., Moshe Zemach and Urbino Construction Services, LLC as Defendants.

On December 16, 2025, Oded Zemach filed an Answer.

On May 28, 2026, the Court granted J.T. Eden's Application for Determination Of Good Faith Settlement.

On July 27, 2026, Plaintiff dismissed J.T. Eden, a California corporation doing business under the fictitious name and style of The Eden Group.

On August 4, 2026, Moshe filed the instant Demurrer.

On August 26, 2026, Plaintiff filed an Opposition.

On September 1, 2026, Moshe filed a Reply.

III. MEET AND CONFER

Before filing a demurrer or motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer or motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (See Code Civ. Proc. § 430.41(a), §435.5(a).) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (See Code Civ. Proc. § 430.41(a)(3).)

Moshe Z.'s counsel attests he met and conferred by email and was unable to resolve his dispute. (See Declaration of Timothy R. Hanigan filed August 4, 2026, ¶ 3.) Plaintiff argues Moshe Z. failed to comply with his meet and confer obligation. (See Opp. at 2:18-27.)

The Court finds an exchange of emails is insufficient to satisfy the obligation to meet and confer in person, by telephone, or by video conference. Parties are expected to meet and confer in good faith prior to seeking judicial intervention. The Court will consider the merits of the instant demurrer but will continue future hearings – or even deny the relief sought without reaching the merits – if the parties fail to comply with their obligations again.

IV. LEGAL STANDARD

A demurrer may be brought if insufficient facts are stated to support the cause of action asserted. (See Code Civ. Proc. § 430.10(e).) “[T]he court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded.”²(Id.) Allegations are to be liberally construed. (See Code Civ. Proc. § 452.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (See *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (See *SKF Farms v. Superior Court*,³(1984) 153 Cal.App.3d 902, 905.) To the extent factual allegations conflict with the content of the exhibits to the complaint, we rely on and accept as true the contents of the exhibits and treat as surplusage the pleader's allegations as to the legal effect of the exhibits. (See *Barnett v. Fireman's Fund Ins. Co.* (2001) 90 Cal.App.4th 500, 505.) A demurrer can only be sustained when it disposes of an entire cause of action.⁴(See *Poizner v. Fremont Gen. Corp.* (2007) 148 Cal.App.4th 97, 119; *Kong v. City of Hawaiian Gardens Redev. Agency* (2003) 108 Cal.App.4th 1028, 1046.)

²Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court a pleading can be amended successfully. (See *id.*) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245.)

V. ANALYSIS

Moshe Z. demurs to the 4AC's five causes of action. As to the first claim, Moshe Z. argues the 4AC lacks allegations he was involved in the construction improvements or responsible for any resulting defect. (See Dem. at 4:7-11.) Moshe Z. demurs to the second through fifth claims on grounds they are not asserted against him. (See id., at 4:18-22.)

In opposition, Plaintiff argues the first claim is sufficiently alleged against Moshe as the 4AC pleads Moshe Z. is the alter ego of Urbino. Plaintiff argues paragraphs 51, 53, and 55 allege Defendants breached their duty to Plaintiff. (See Opp. at 3:3-27.) Plaintiff argues although the second through fourth claims are not asserted against Moshe Z., they contain allegations which implicate Moshe Z. (See id., at 4:7-5:5.) Plaintiff argues there is no basis for demurrer to the fifth claim as its allegations do not implicate Moshe Z. (See id., at 5:8-9.)

In reply, Moshe argues the first claim fails to allege Moshe Z. or his entity, Urbino, were involved in the construction of the subject property or that either owed a duty to Plaintiff. (See Reply at 2:21-25.) Moshe contends the general allegation all Defendants owed a general duty of care to Plaintiff is insufficient as to defendant Moshe/Urbino. (See id., at 3:10-11.) Moshe reasserts the second through fifth claims fail to state a claim because they are not directed against him. (See id., at 3:19-23.)

As an initial matter, the Court will overrule Moshe Z.'s demurrer to the second through fifth causes of action because they are not asserted against him. Where there is more than one plaintiff or defendant, the names of the plaintiffs asserting the particular cause of action and the defendants against whom the cause of action is asserted must be stated. (See Rules of Court, rule 2.112.) A demurrer can only test the legal sufficiency of the claims stated against a defendant. (See Code Civ. Proc. § 430.10 [limiting the right to demur to "the party against whom a complaint or cross-complaint has been filed"]; see also *Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078 ["if a cause of action names two or more defendants, the sufficiency of the complaint against one defendant does not immunize the plaintiff against a properly imposed demurrer by another defendant who may separately demur."].) The second through fifth causes of action are not asserted against Moshe Z. (See 4AC.) Thus, the Court **OVERRULES** Moshe Z.'s Demurrer to the second through fifth causes of action.

However, the first claim insufficiently asserts a violation of the Right to Repair Act against Moshe Z. "[T]o make a claim for violation of the standards set forth in Chapter 2 (commencing with Section 896), a homeowner need only demonstrate... the home does not meet the applicable standard, subject to the affirmative defenses set forth in Section 945.5. No further showing of causation or damages is required to meet the burden of proof regarding a violation of a standard set forth in Chapter 2 (commencing with Section 896), provided that the violation arises out of, pertains to, or is related to, the original construction." (Civ. Code § 942.) Civil Code § 896 provides "a builder...a general contractor, subcontractor, material supplier, individual product manufacturer, or design professional, shall...be liable..." under the Act. (Civ. Code § 896.)

The Right to Repair Act "supplies a new statutory cause of action for purely economic loss (§§ 896–897, 942–944)." (*McMillin Albany LLC v. Superior Court* (2018) 4 Cal.5th 241, 249.) "Chapter 2 [of the Act] defines standards for building construction. (§§ 896–897.)" (Id., 2 Cal.4th at 250.) The express language of § 896 provides a party seeking damages for a construction defect may only sue for violation of the standards set forth in that section. (See id.) "[S]ection 944 identifies what damages may be recovered in an action under the Act, and section 943 establishes that such damages may only be recovered in an action under the Act, absent an express exception." (Id., 2 Cal.4th at 251, emphasis in original.)

The 4AC alleges Moshe Z. was sole managing member and alter ego of Urbino. (See 4AC, ¶¶ 14, 17-18.) Plaintiff alleges Urbino's assets are comingled with Rancho Villa LLC's. (See id., ¶ 17.) The 4AC alleges "Plaintiff's counsel sent the Developer [Rancho Villa LLC] a formal demand for repairs in accordance with...the Right to Repair Act." (Id., ¶ 4, 42-43.) Plaintiff alleges Developer sold the property. (See id., ¶ 54.) On these allegations, the Court finds Plaintiff does not allege a claim under the Right to Repair Act against Moshe Z. None of the general conclusory allegations Defendants violated the standards set forth in Section 896 are supported by facts alleging Moshe Z. is a party who can be liable under the Act. (See id., ¶¶ 53, 55; see Civ. Code § 896.) Neither Moshe Z. nor Urbino are alleged to be a builder, developer, general contractor, contractor, or original seller of the subject property. (See Civ. Code § 911(a).) Likewise, the 4AC doesn't allege Moshe Z. is an alter ego of Rancho Villa LLC such that he could be held liable under the alter ego doctrine. (See 4AC, ¶ 6.) Thus, the 4AC fails to state a claim for violation of the Right to Repair Act against Moshe Z.

Thus, the Court SUSTAINS IN PART Moshe Z.'s Demurrer to the 4AC to the First Cause of Action for violation of the Right to Repair Act WITH LEAVE TO AMEND. The Court OVERRULES the Demurrer as to the Second through Fifth Causes of Action.

///

///

///

VI. CONCLUSION

Based on the foregoing, the Court SUSTAINS IN PART Moshe's Demurrer to the 4AC to the First Cause of Action for violation of the Right to Repair Act WITH LEAVE TO AMEND. The Court OVERRULES the Demurrer as to the Second through Fifth Causes of Action.

Plaintiff has leave to file an amended complaint by no later than September 21, 2026.

IT IS SO ORDERED.

DATED: September 10, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.